IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF NEW YORK
ROCHESTER DIVISION

MARC M. MOSZKOWSKI,
Le Verdos
83300 Châteaudouble, France

Plaintiff,

vs.

DAVID L. RUMSEY, ESQ.,
DealPoint Merrill, LLC
11 Schoen Pl. Ste. 3
Pittsford, NY 14534

RUSTIN R. HOWARD,
7205 Suman Lane, Unit A
Pensacola, FL 32526

DEEPGULF, INC.,
7205 Suman Lane, Unit A
Pensacola, FL 32526

and JOHN DOES 1–10,

Defendants.

Case No. 26-cv-6015 EAW

VERIFIED COMPLAINT

(Civil RICO, Fraud, Conspiracy, Abuse of Process, Conversion, Declaratory Judgment, Injunctive Relief, and Damages)

This is a civil action arising under the Racketeer Influenced and Corrupt

Organizations Act ("RICO"), 18 U.S.C. §§ 1961–1968, and related federal and state law claims, seeking redress for a coordinated scheme of fraud, abuse of process, and unlawful expropriation of Plaintiff's property.

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I. INTRODUCTION

This action arises from a coordinated, multi-jurisdictional scheme by Defendants David Rumsey, Rus Howard, and their associated entities, including DeepGulf, Inc. and the later-revived and non-operational "Toke Oil and Gas S.A.," to unlawfully seize Plaintiff's assets, extort repayment of sums never loaned, conceal mandatory corporate disclosures, and procure judicial determinations through fraud, falsified documents, and intentional misrepresentation. The enterprise described herein operated across state and national borders, principally Florida and France, using interstate communications, foreign banking channels, and the instrumentalities of two distinct court systems to convert Plaintiff's property and impose crushing financial and personal harm.

Beginning no later than 2013, Defendants undertook a concerted effort to disguise Plaintiff's earned salary and corporate reimbursements as personal "loans," to mischaracterize corporate revenue streams, and to fabricate board actions retroactively in order to justify litigation that lacked lawful authorization. These acts were not isolated; they formed a continuous pattern of racketeering activity, including mail fraud, wire fraud, and the use of foreign proceedings to enforce fraudulent claims. Central components of the scheme included (a) presenting a personal transfer from Howard as a usurious 17% "loan" from Rumsey; (b) inducing a French tribunal to enter a default judgment by proceeding without service on Plaintiff and by submitting selectively excerpted and misleading documentary materials that were never examined in an adversarial setting; and (c) using that improperly obtained foreign judgment to place a lien on Plaintiff's only home and initiate a forced judicial sale.

Separate and apart from the French component, Defendants simultaneously manipulated proceedings in the State of Florida. They revived a defunct foreign corporation, Toke Oil and Gas S.A., whose asserted foreign status ultimately became the basis for remand to state court, notwithstanding that Plaintiffs had not opposed removal and had litigated in federal court until the issue was raised sua sponte on appeal.

Toke Oil and Gas S.A. had no active legal existence, no registered foreign domicile, no capital, and no regulatory filings in Timor-Leste. Its board consisted of only two directors, one of whom was Plaintiff. Nevertheless, Defendants presented Toke as a legitimate foreign plaintiff in U.S. proceedings. Plaintiffs did not initially contest removal to federal court and only embraced the "foreign plaintiff" theory after adverse rulings, when the issue was raised *sua sponte* on appeal.

These transnational actions were undertaken while Defendants concealed from Plaintiff, for years, the corporation's binding commitment to the U.S. Department of Homeland Security to pay Plaintiff $120,000 per year in W-2 compensation, later increased to $132,000. Defendants repeatedly invoked statute-of-limitations defenses against Plaintiff in a 2020 Florida action while simultaneously denying, falsely, that such salary commitments ever existed. Only through discovery did Plaintiff learn the truth. Defendants' pattern of concealment, selective disclosure, and contradictory litigation positions constitutes a deliberate and ongoing enterprise whose objective was to deprive Plaintiff of earned wages, corporate rights, and property.

After securing the foreign default judgment in France, Defendant Rumsey leveraged it to obtain a lien on Plaintiff's ancestral home, his sole asset and residence, despite full knowledge that the alleged loan had never been made by Rumsey and that the transfer originated from Howard personally. Because French law prohibits self-representation, and because Plaintiff was never summoned to the hearing, the proceeding occurred entirely in his absence and the tribunal considered the matter without any adversarial clarification; Plaintiff learned of the trial date only three months later, upon service of the judgment The resulting lien now places Plaintiff under imminent threat of homelessness and loss of his entire estate.

This enforcement occurred against a background of parallel conduct by Defendant Howard, who had personal knowledge that no loan transaction ever occurred, that Rumsey never advanced funds to Plaintiff, and that the payment later labeled as a 'loan' originated from Howard personally.

Separately, DeepGulf and its principals pursued parallel litigation in Florida, advancing financial theories previously rejected by federal courts, relying on fabricated or retroactively adopted corporate minutes, and obscuring the identity and domicile of Toke in support of jurisdictional and damages claims.

These actions, in France and Florida, were not independent mishaps but interconnected steps within a single racketeering enterprise whose design was to (1) fabricate liability against Plaintiff; (2) conceal corporate misconduct by DeepGulf's principals; (3) evade federal oversight; and (4) expropriate Plaintiff's property and earnings by weaponizing the judicial systems of two nations. Defendants' conduct inflicted catastrophic personal, financial, and constitutional harm. Plaintiff now seeks relief under the Racketeer Influenced and Corrupt Organizations Act, 18 U.S.C. §§ 1962(c) and (d), for trebled damages, dissolution of the enterprise, and all appropriate equitable remedies.

II. JURISDICTION AND VENUE

This action arises under the Racketeer Influenced and Corrupt Organizations Act ("RICO"), 18 U.S.C. §§ 1961–1968. Plaintiff asserts claims under 18 U.S.C. § 1962(c) and § 1962(d). This Court has subject-matter jurisdiction pursuant to 28 U.S.C. § 1331 (federal-question jurisdiction) and 18 U.S.C. § 1964(c), which provides a private right of action for treble damages, costs, and attorney's fees for persons injured by reason of a RICO violation.

To the extent relevant, diversity jurisdiction also exists under 28 U.S.C. §

1332(a)(2), because the controversy is between a citizen or national of a foreign state (the Plaintiff, domiciled in France) and citizens of U.S. states (Defendants domiciled New York and in Florida), and the amount in controversy exceeds $75,000 exclusive of interest and costs. To the extent any Defendant attempts to invoke the existence of "Toke Oil and Gas S.A." as a foreign corporate entity for jurisdictional purposes, Plaintiff alleges that such entity was dormant, noncompliant with Timorese law, lacked corporate existence and domicile, and was revived solely as a litigation artifice. Because this action arises under federal law, subject-matter jurisdiction exists pursuant to 28 U.S.C. § 1331 regardless of the parties' citizenship. Moreover, a fictitious or non-existent entity cannot alter jurisdictional analysis or justify procedural manipulation.

This Court also has supplemental jurisdiction under 28 U.S.C. § 1367 over all state-law claims that form part of the same case or controversy as the federal RICO causes of action. The fraudulent loan scheme, the fabricated corporate minutes, the misuse of foreign proceedings, and the manipulation of state-court jurisdiction in Florida are all part of a continuous course of related conduct by the same enterprise.

Venue is proper in this District under 28 U.S.C. § 1391(b)(2) because a substantial part of the events and omissions giving rise to Plaintiff's claims occurred in the Western District of New York. Defendant David Rumsey resides in Monroe County, New York, within this District, and it was from this District that Rumsey formulated, authorized, and pursued the false claim that he had loaned Plaintiff $50,000, a claim that formed the factual predicate for the fraudulent foreign litigation and resulting seizure of Plaintiff's property.

In furtherance of the scheme, Defendants caused fraudulent and misleading communications and litigation materials to be transmitted into, out of, and through this District, including communications received and relied upon by Defendant Rumsey in Monroe County. Those communications were integral to the maintenance and enforcement of the fraudulent claims at issue and had direct operative effect on the conduct of the enterprise and the injuries suffered by Plaintiff.

Venue is proper under 18 U.S.C. § 1965(a) because Defendant David Rumsey resides in the Western District of New York, within Monroe County, and conducted acts in furtherance of the racketeering enterprise from and within this District. Rumsey's formulation, authorization, and pursuit of the false claim that he had loaned Plaintiff $50,000, later used to initiate and enforce foreign litigation, constituted core racketeering conduct giving rise to Plaintiff's injuries. Where venue is proper as to one RICO defendant, venue is proper as to all defendants who participated in the same enterprise.

The Court may exercise personal jurisdiction over Defendants Howard and DeepGulf, Inc. pursuant to 18 U.S.C. § 1965(b) and New York's long-arm statute because the ends of justice require that all members of the racketeering enterprise be brought before a single court. Howard and DeepGulf, operating primarily from Florida, directed and coordinated racketeering acts integral to the same enterprise in which Rumsey participated from New York, including interstate and foreign wire communications, manipulation of corporate records, and litigation conduct that foreseeably caused injury to Plaintiff.

To the extent any Defendant argues that actions occurring in France or Timor-Leste deprive this Court of jurisdiction or venue, Plaintiff alleges that the foreign activities were an integral part of the same domestic racketeering scheme. RICO expressly reaches foreign conduct where, as here, the pattern of racketeering involves U.S. enterprises, U.S. defendants, U.S. property, U.S. pleadings, and interstate or foreign wire transmissions originating from or directed into the United States. Defendants' foreign actions were in service of a U.S.-based enterprise operating primarily from

Florida whose object was to expropriate Plaintiff's earnings and seize his U.S.-connected corporate interests and property.

Transfer under 28 U.S.C. § 1404(a) would not serve the convenience of parties or witnesses, nor the interests of justice, because this action concerns a single, integrated racketeering enterprise, venue is proper in this District, and transfer would merely shift inconvenience while risking inconsistent adjudication of Defendants' coordinated conduct.

III. PARTIES

Plaintiff Marc M. Moszkowski ("Plaintiff") is a natural person and citizen of France, residing at Le Verdos, 83300 Châteaudouble, France.

At all relevant times prior to 2018, Plaintiff was a director, officer, and substantial voting shareholder of DeepGulf, Inc. Plaintiff thereafter ceased to be an officer but remained a shareholder. With respect to his director status, DeepGulf, Inc. has taken inconsistent sworn positions.

Based on information provided by Defendant Howard before corporate records were withheld, Plaintiff holds approximately 46.2% of the Class A voting common stock, constituting a majority of the voting shares not held by outside investors. Defendant Howard has alternated between asserting that Plaintiff ceased to be a director and affirming under oath that he remained one, thereby obscuring the company's true governance and ownership structure.

Since 2019, Defendants have declined to meaningfully provide Plaintiff with corporate records, instead ignoring written requests or conditioning access on in-person inspection despite Plaintiff's known inability to travel and the records' electronic form.

Plaintiff is the individual targeted by the racketeering enterprise described herein, which sought to deprive him of earned compensation, corporate rights, and real property through fraud, concealment, misuse of judicial systems, and manipulation of domestic and foreign corporate structures.

Primary Defendants

Defendant David L. Rumsey ("Rumsey") is a natural person residing in Monroe County, State of New York, at DealPoint Merrill, LLC, 11 Schoen Pl. Ste. 3, Pittsford, NY 14534. David Rumsey is an attorney licensed in New York and is described in professional directories as a "Corporate and incorporation Lawyer at Pittsford, NY – Practice Areas: Corporate & Incorporation, Estate Planning, Real Estate". Rumsey's publicly represented professional background reflects familiarity with corporate finance, ownership structures, and the legal consequences of mischaracterizing financial transfers, matters directly implicated by the conduct alleged herein.

Plaintiff never communicated directly with Rumsey regarding any loan or financial transaction.

Rumsey was the enterprise's principal operational actor in the enforcement phase, initiating and prosecuting the false claim that he had personally loaned Plaintiff $50,000 when he had not. Rumsey alone commenced and pursued the French litigation, falsely representing himself as lender and creditor, and Rumsey alone enforced the resulting default judgment, causing Plaintiff's bank accounts to be seized and a judicial lien to be placed on Plaintiff's ancestral home, leading to threatened forced sale.

Rumsey acted in coordinated concert with Defendant Howard, who supplied the false factual premise for Rumsey's claim by personally wiring the funds, concealing DeepGulf's accrued debt to Plaintiff, and supporting the mischaracterization of earned salary as personal debt. Howard's conduct enabled and facilitated Rumsey's enforcement actions, although the seizure and enforcement measures themselves were carried out by Rumsey.

At all relevant times, Rumsey was also a substantial shareholder of DeepGulf, Inc., giving him a direct financial interest in extinguishing DeepGulf's liabilities and in the outcome of the litigation and enforcement actions described herein.

Defendant Rus R. Howard ("Howard") is a natural person residing in Pensacola, Florida, at 7205 Suman Lane Unit A, Pensacola, FL 32526. Howard was the architect and principal supervisor of the racketeering enterprise. At all relevant times, Howard served as Chairman of DeepGulf, Inc. and possessed exclusive control over its finances, records, and litigation strategy. Howard supplied the false foundation for Rumsey's litigation in France by personally wiring the funds later misrepresented as a Rumsey "loan"; concealed DeepGulf's binding salary obligations to Plaintiff; fabricated or retroactively altered corporate minutes; misrepresented the identity, domicile, and structure of Toke Oil and Gas S.A.; and orchestrated the revival of that defunct foreign entity to destroy federal diversity jurisdiction. Howard coordinated domestic and foreign filings, directed interstate and overseas wire communications, and ensured the enterprise's continuity.

Defendant DeepGulf, Inc. ("DeepGulf") is a Florida corporation based in Pensacola, Florida, at 7205 Suman Lane Unit A, Unit A, Pensacola, FL

32526.

DeepGulf functioned as a corporate instrumentality of the racketeering enterprise. Acting through Defendant Howard and other aligned participants who excluded Plaintiff from corporate governance and access to records, DeepGulf was used to obscure financial misconduct, conceal mandatory salary obligations, disguise revenue allocations, and initiate litigation against Plaintiff based on fabricated authorizations and selectively omitted corporate records.

At all relevant times, the challenged actions taken in DeepGulf's name lacked lawful board approval and were undertaken without Plaintiff's knowledge or consent, notwithstanding his status as a substantial shareholder and, according to Defendants' own inconsistent sworn statements, a continuing director. DeepGulf thereby served as a conduit through which Defendant Howard carried out fraudulent communications, false jurisdictional representations, and coordinated predicate acts under 18 U.S.C. § 1961(1).

"Toke Oil and Gas S.A." ("Toke") is referenced herein solely as an alleged nominal or instrumental entity invoked by Defendant Howard, acting through Defendant DeepGulf, Inc., and is not named as a defendant in this action. Howard and DeepGulf have described Toke as a foreign corporation purportedly domiciled in Timor-Leste. Plaintiff alleges that, at all relevant times, Toke lacked an operative corporate existence, was not conducting business, and did not function as an independent operating entity. At the time it was invoked in Florida proceedings, Toke's board consisted of only two directors, one of whom was Plaintiff, and no lawful board authorization to initiate litigation ever existed. Toke is referenced in this Complaint solely to describe the representations made by Howard and DeepGulf and the structure and operation of the alleged enterprise.

Whitesands, LLC ("Whitesands") is referenced herein solely as an investment vehicle wholly controlled by Defendant Rus Howard and used by him to transmit funds and conduct financial transactions relevant to the acts alleged. Whitesands is not named as a defendant in this action. Plaintiff alleges that Whitesands did not operate as an independent decision-maker, lender, or enterprise participant, but functioned exclusively as an instrumentality through which Defendant Howard acted. References to Whitesands are made solely to describe the source and routing of funds and the conduct of Defendant Howard, and not to assert any independent liability, agency, or enterprise membership on the part of Whitesands.

The Enterprise

The RICO Enterprise. Plaintiff alleges that Defendants Rumsey, Howard, DeepGulf, together with unnamed co-conspirators, constituted an "enterprise" within the meaning of 18 U.S.C. § 1961(4). The enterprise's common purpose was to deprive Plaintiff of earned wages, revenue, and property by means of coordinated fraud, wire transmissions, concealment of material facts, and misuse of foreign and domestic judicial systems. The enterprise functioned continuously for more than a decade, operating across France and Florida, and invoking Timor-Leste solely as a nominal jurisdictional reference in later proceedings, while utilizing interstate and foreign communications, banking channels, and litigation mechanisms.

Association-in-Fact Enterprise. The enterprise was an association-in-fact whose members were united by the shared objective of expropriating Plaintiff's assets, retroactively recharacterizing legitimate salary as debt, and fabricating a narrative to justify litigation and property seizure. Although informal in structure, the enterprise exhibited the longevity, coordination, and pattern of racketeering activity required by 18 U.S.C. § 1961(4). Each Defendant played a distinct and indispensable role: Rumsey as the initial operational actor, Howard as the architect and controller, and DeepGulf as the corporate vehicle.

IV. FACTUAL BACKGROUND

Plaintiff re-alleges and incorporates all preceding paragraphs. This section sets forth the factual background giving rise to the enterprise, including the financial relationship between Plaintiff and DeepGulf, the personal obligations undertaken by Defendant Howard, the events surrounding the purported "loan," and the subsequent use of that fiction in foreign and domestic litigation.

A. Plaintiff's Role at DeepGulf and Early Financial Structure (2005–2012)

From 2005 onward, Plaintiff served as a director and key contributor to DeepGulf, Inc., performing technical, financial, and operational work essential to corporate viability. DeepGulf possessed little or no capital during this period; Plaintiff personally financed travel, corporate development, and early-stage business activities.

During these years, DeepGulf accrued substantial salary obligations to Plaintiff under certified immigration representations made to the U.S. Department of Homeland Security ("DHS"), including representations guaranteeing specific annual compensation. These obligations were not contingent and were known to Howard, who exercised exclusive control over DeepGulf's records, reporting, and finances.

Between 2007 and 2012, Plaintiff facilitated significant business opportunities and revenue streams for DeepGulf. Howard's knowledge of these revenues and related accounting data was contemporaneous, complete, and reflected in communications and documents he received throughout that period.

B. DeepGulf's Accrued Debt and Howard's DHS Personal Guarantee by June 2013

By June 2013, DeepGulf owed Plaintiff $656,282.21 in accrued salary and reimbursable obligations, calculated using Federal Reserve inflation indices from 2004 onward.

During this same period, in connection with the granting of Plaintiff's H-1B visa, Howard represented to the U.S. Department of Homeland Security that DeepGulf was obligated to pay Plaintiff a specified annual salary and personally guaranteed the corporation's wage obligations, which by mid-2013 totaled $482,669.79 when adjusted for inflation. Howard's personal exposure on this guarantee constituted a significant individual financial liability.

The obligations were known to Howard and reflected in the company's representations to federal authorities. These figures appear in DeepGulf's internal records and in representations made to DHS.

C. Plaintiff's 2010–2014 Consulting Income and Howard's $50,000 Transfer

Between 2010 and 2014, Plaintiff earned approximately $125,000 in net consulting income from an independent French oil and gas entity. Plaintiff voluntarily assigned this income to DeepGulf to cover corporate and salary expenses. Of that amount, $95,500 was assigned after Defendant Howard's June 2013 wiring of $50,000, demonstrating that Plaintiff continued to support DeepGulf financially notwithstanding its existing arrears to him.

On or about June 2013, Defendant Rus Howard, acting from Florida, caused a $50,000 wire transfer to be transmitted to Plaintiff's son through interstate and foreign banking channels from Whitesands, LLC, Howard's personal investment vehicle.

Howard internally described this transfer as an "accounting gimmick" and referred to it as a "loan" for DeepGulf's internal books, nor did Howard document himself as the lender. No repayment schedule, interest terms, or loan instrument exists. No corporate resolution authorizing a loan appears in DeepGulf's records.

Rumsey never wired any funds to Plaintiff nor anybody else. Rumsey was not involved in the transfer, did not provide the funds, and had no financial transaction with Plaintiff at any time.

No funds were ever transferred by Rumsey to Plaintiff, no repayment was requested for more than four years, and no consideration flowed from Rumsey to Plaintiff at any time, facts incompatible with the existence of any enforceable lending relationship.

At the time of the June 2013 transfer, DeepGulf owed Plaintiff more than $656,000 in accrued salary and reimbursements, and Howard had personally guaranteed $482,669.79 of those obligations. No contemporaneous document reflects the creation of a new personal debt by Plaintiff.

D. Absence of Any Loan Relationship Based on an Advance by Rumsey

At no time did Plaintiff receive any funds from Defendant David Rumsey or incur any loan obligation to Rumsey corresponding to an advance of funds by him.

Plaintiff did not negotiate loan terms with Rumsey, did not receive funds from Rumsey, and did not make or receive any request for repayment to Rumsey prior to late 2017.

The only transfer of funds at issue is a $50,000 wire initiated by Defendant Rus Howard in June 2013 through his personal investment vehicle, Whitesands, LLC. The wire transfer was not made to Plaintiff, but to Plaintiff's son, and Plaintiff was not the named payee of the funds. That transfer was not accompanied by any contemporaneous payment by Rumsey, and no funds were ever advanced by Rumsey to Plaintiff in connection with that transfer.

At Howard's direction, Plaintiff consulted a French attorney regarding a draft document transmitted as a PDF that nominally characterized the June 2013 transfer as a loan bearing 17% interest and naming Rumsey as lender. The document bore a stamped signature image. No funds were transferred by Rumsey in connection with the document, and no payment, demand, or course of performance followed that would be consistent with a lending relationship between Rumsey and Plaintiff.

Howard represented to Plaintiff that the draft documentation was an internal accounting device between Howard and Rumsey and would not be enforced against Plaintiff.

Consistent with that understanding, Rumsey made no demand for repayment, asserted no creditor rights, and took no action consistent with being a lender for more than four years after the June 2013 transfer.

E. Rumsey's French Litigation and Procurement of a Default Judgment (2014–2019)

In or about November 2017, Rumsey asserted for the first time that the June 2013 transfer constituted a personal loan to Plaintiff, notwithstanding that no funds had ever been advanced by Rumsey to Plaintiff and that no course of performance had ever occurred consistent with a creditor–debtor relationship.

Rumsey thereafter initiated a civil action in France seeking repayment of that amount. In or about April 2018 and November 2018, Rumsey submitted, or caused to be submitted, written pleadings and supporting documents in the French proceeding identifying himself as the lender of the June 2013 transfer and omitting any identification of Howard or Whitesands, LLC as the source of the transferred funds. The French court thereafter entered a default judgment against Plaintiff.

French procedural rules prohibit self-representation in civil cases. Due to Plaintiff's financial circumstances, geographic isolation, and inability to obtain counsel, Plaintiff did not participate in the proceedings and was not summoned to the dispositive hearing.

The French court entered a default judgment against Plaintiff, which was subsequently used to seize Plaintiff's bank accounts and to place a judicial lien on Plaintiff's home in France.

F. Florida Litigation Involving Plaintiff (2018–2025)

Between 2018 and 2025, Defendants Howard and DeepGulf transmitted, by electronic and postal means, a series of filings, sworn submissions, and related correspondence in Florida state-court proceedings involving Plaintiff.

Those filings addressed Plaintiff's relationship with DeepGulf and related financial matters but did not disclose accrued salary obligations owed by DeepGulf to Plaintiff that had been reflected in earlier corporate records and representations to federal authorities. Although Howard later produced a document he authored and signed in September 2012 purporting to suspend executive payroll, the document was unilateral, was never communicated to Plaintiff, was never assented to by Plaintiff, and did not reflect any agreed waiver or modification.

During the same period, Howard and DeepGulf advanced litigation positions in Florida that were inconsistent with financial information previously provided by DeepGulf to federal authorities in connection with Plaintiff's employment and compensation.

G. Resulting Injuries

Plaintiff's home remains subject to judicial sale; Plaintiff's bank accounts were seized; Plaintiff's contractual and earned income was recharacterized as debt; and Plaintiff remains physically unable to travel due to medical condition and a state of destitution formally recognized by both French and Florida courts. Enforcement efforts relating to these matters continue.

V. THE ENTERPRISE AND THE PATTERN OF RACKETEERING ACTIVITY

Plaintiff re-alleges and incorporates all preceding paragraphs. At all relevant times, Defendants participated in an association-in-fact enterprise within the meaning of 18 U.S.C. § 1961(4). The enterprise consisted of a continuing relationship among the Defendants and functioned with a common purpose and sufficient longevity to pursue a shared course of conduct, as described below.

A. Composition and Structure of the Enterprise

The enterprise was an association-in-fact consisting of Defendant David

Rumsey, Defendant Rus Howard, and Defendant DeepGulf, Inc.

Defendant Rus Howard was a founder, principal officer, and controlling participant in DeepGulf, Inc. Defendant David Rumsey was an investor in DeepGulf. Defendant DeepGulf, Inc. was the corporate entity through which Defendants' financial relationships with Plaintiff were administered and through which litigation positions were asserted.

At all relevant times, Defendant Howard exercised operational control over DeepGulf and over the investment vehicle Whitesands, LLC, through which the June 2013 $50,000 transfer was made. Defendant Rumsey did not transfer funds to Plaintiff but later asserted a creditor position in relation to that transfer.

Based on information conveyed by Defendant Howard, during the relevant period Whitesands, LLC (an investment vehicle wholly controlled by Howard) contributed approximately $200,000 in capital to DeepGulf, and Defendant Rumsey contributed approximately $96,000. Both therefore had a direct financial interest in DeepGulf's liabilities to Plaintiff and in the financial characterization of payments and obligations involving Plaintiff.

The members of the enterprise maintained ongoing financial, investment, and litigation-related relationships over a period exceeding eight years.

They functioned as a continuing unit with a shared interest in managing and responding to DeepGulf's financial obligations to Plaintiff and related claims asserted in foreign and domestic proceedings.

Although the name "Toke Oil and Gas S.A." was intermittently referenced by Defendants in later litigation, that entity was not an operating corporation, did not participate in the conduct alleged herein, and is not alleged to be a member of the enterprise.

B. Common Purpose of the Enterprise

The enterprise shared a common purpose of managing, reallocating, and responding to DeepGulf's substantial financial obligations to Plaintiff in a manner that reduced or eliminated Defendants' exposure.

That purpose included avoiding repayment of accrued compensation owed to Plaintiff, addressing Howard's personal exposure arising from guarantees made in connection with Plaintiff's employment, and advancing an alternative financial characterization of prior payments and obligations in foreign and domestic proceedings.

The enterprise's participants pursued this purpose through coordinated actions taken over time, with each participant performing distinct but complementary roles consistent with their respective positions and interests.

C. Roles of Enterprise Members

Defendant David Rumsey functioned as the enterprise's enforcement and litigation actor in foreign proceedings. Although Rumsey did not transfer funds to Plaintiff in connection with the June 2013 payment, he later asserted a creditor position with respect to that transfer, initiated civil litigation in France, obtained a default judgment, and pursued seizure and enforcement actions in his own name.

Defendant Rus Howard functioned as the enterprise's coordinating and facilitating participant. Howard controlled DeepGulf's internal financial records and communications, directed the preparation and handling of documents relating to the June 2013 transfer, and supported Rumsey's later assertion of a creditor position. Howard also directed and supervised domestic litigation in Florida involving Plaintiff, advancing positions concerning Plaintiff's financial conduct and obligations.

Defendant DeepGulf, Inc. functioned as the enterprise's corporate instrument. DeepGulf served as the vehicle through which employment, compensation, and financial relationships with Plaintiff were administered, through which records reflecting accrued salary obligations were maintained or withheld, and through which domestic litigation positions were asserted.

Each participant performed distinct but complementary functions consistent with his or its position, enabling the enterprise to pursue its shared objectives through foreign enforcement actions and domestic litigation activity.

D. Predicate Acts of Racketeering

Beginning in or about November 2017, Defendant David Rumsey asserted for the first time that the June 2013 transfer constituted a personal loan to Plaintiff, notwithstanding that no funds were ever advanced by Rumsey and that the only funds at issue originated from Defendant Rus Howard through Whitesands, LLC.

From at least November 2017 through the present, Defendants committed multiple acts of racketeering within the meaning of 18 U.S.C. § 1961(1), including acts of wire fraud and mail fraud, as set forth below.

(a) Wire Fraud (18 U.S.C. § 1343)

Defendants knowingly transmitted, and caused to be transmitted, materially false and misleading representations concerning the nature of the June 2013 $50,000 transfer, DeepGulf's accrued salary obligations to Plaintiff, and Plaintiff's alleged indebtedness, by means of interstate and foreign wire communications.

These wire communications included electronic correspondence, banking transmissions, and electronically filed judicial submissions transmitted between Florida, New York, and France, and were used to advance and reinforce the false characterization of the transfer as a loan from Rumsey.

(b) Mail Fraud (18 U.S.C. § 1341)

Defendants knowingly sent, and caused to be sent, falsified or misleading documents through postal and commercial courier channels in furtherance of the same scheme, including documents used in foreign litigation, enforcement proceedings, and related communications asserting or relying upon the purported loan.

(c) Use of Judicial Proceedings as Instruments of Fraud

Defendants employed foreign and domestic judicial proceedings as mechanisms to disseminate and enforce the false loan narrative, including by submitting documents misidentifying the source and recipient of the June 2013 transfer, omitting material financial obligations owed by DeepGulf to Plaintiff, and invoking resulting judicial orders to seize Plaintiff's assets and impose liens.

Although judicial filings and orders were involved, Defendants' racketeering acts consisted of the underlying fraudulent transmissions and mailings that corrupted those proceedings.

At all relevant times, Defendants knew that the representations concerning the purported loan were false or misleading and acted with the intent to deceive courts and third parties, using interstate and foreign wire and mail communications as essential instruments of the scheme.

Defendants' racketeering acts were not the filing of lawsuits as such, but the transmission of knowingly false factual representations and omissions through interstate and foreign wires and mails, which preceded, corrupted, and independently injured Plaintiff apart from any judicial determination.

E. Interstate and Foreign Commerce Nexus

At all relevant times, the activities of the enterprise involved and affected interstate and foreign commerce within the meaning of 18 U.S.C. § 1962(c).

The enterprise's conduct included the use of interstate and international wire communications, cross-border banking transactions, electronic communications transmitted between Florida and France, and the transmission of documents and payments across state and national boundaries in connection with foreign and domestic proceedings.

F. Continuity of the Enterprise

The enterprise's conduct demonstrates closed-ended continuity within the meaning of 18 U.S.C. § 1962(c). The racketeering acts alleged herein were related and occurred over a substantial period of time, spanning from at least 2013 through the present, and included repeated uses of interstate and foreign wires and mails in furtherance of a common scheme.

The conduct also presents open-ended continuity. Defendants' use of litigation and enforcement mechanisms to advance and maintain the challenged financial narrative represents a method of operation that, by its nature, poses a threat of repetition so long as the underlying claims and enforcement efforts remain pending or are invoked in additional proceedings.

Although Defendants' scheme originated in earlier financial concealment, the racketeering pattern became operative no later than November 2017, when Defendant Rumsey first asserted a false creditor position and thereafter repeatedly used interstate and foreign wires and mails to enforce that claim.

VI. THIS ACTION IS NOT A CONTRACT DISPUTE, NOR A COLLATERAL ATTACK ON A FOREIGN JUDGMENT

This action does not arise from a contract dispute, a disagreement over the performance of a loan or investment, or any claim of nonpayment or breach. Plaintiff does not allege the existence of a valid loan agreement with Defendant Rumsey and does not seek relief based on contractual rights or obligations. The claims asserted herein arise from Defendants' coordinated racketeering conduct, including the use of materially false representations and deceptive communications to advance a debt narrative unsupported by any transfer of funds or course of performance.

This action is also not a collateral attack on any foreign judgment. Plaintiff does not seek review, reversal, or nullification of a decision of a French court, nor does Plaintiff ask this Court to evaluate the correctness of any foreign judicial ruling. The injuries alleged arise from Defendants' racketeering acts themselves, including the transmission of false representations and the use of judicial proceedings as instruments to disseminate and enforce those misrepresentations.

Plaintiff's claims are based on Defendants' conduct in procuring and exploiting judicial process through fraudulent communications and omissions, not on the judicial acts of any foreign tribunal. Liability is alleged to arise from Defendants' racketeering activity, independent of the existence or validity of any foreign judgment.

VII. THE RICO ENTERPRISE IS DISTINCT FROM THE DEFENDANTS

The RICO enterprise alleged herein is an association-in-fact that is distinct from each individual Defendant. The enterprise consists of multiple natural persons and entities who associated together and functioned as a continuing unit.

Each Defendant is alleged to have conducted or participated in the conduct of the enterprise's affairs through a pattern of racketeering activity, but no Defendant is alleged to be identical to, or synonymous with, the enterprise itself. The enterprise is defined by the relationships and coordination among its members, rather than by the identity of any single participant.

The enterprise is not alleged to be coextensive with any single corporate entity. Plaintiff does not allege that a corporation simultaneously served as both the RICO "person" and the RICO "enterprise." Rather, the enterprise is an association-in-fact composed of individuals and entities who acted together, using corporate entities and other instrumentalities to carry out the conduct alleged herein.

VIII. DOMESTIC INJURY TO BUSINESS OR PROPERTY

Plaintiff suffered injury to business or property within the United States as required by 18 U.S.C. § 1964(c).

Defendants' racketeering conduct was devised, directed, and executed in substantial part from the United States, including from New York and Florida, and caused immediate injury to Plaintiff's U.S.-based legal and economic interests. Those injuries include the impairment and loss of Plaintiff's litigation rights and defenses in United States courts, the assertion of fraudulent monetary demands by U.S.-based defendants, and the concealment and diversion of financial obligations governed by U.S. corporate and employment relationships.

Although certain enforcement actions occurred abroad, the injuries alleged herein were suffered in the United States and arose from domestic conduct essential to the scheme's operation. Plaintiff therefore satisfies the domestic-injury requirement recognized in *RJR Nabisco, Inc. v. European Community*, 579 U.S. 325 (2016).

IX. INJURIES, DAMAGES, AND IRREPARABLE HARM

Plaintiff re-alleges and incorporates all preceding paragraphs. As a direct and proximate result of Defendants' violations of 18 U.S.C. §§ 1962(c) and 1962(d), Plaintiff has suffered substantial injury to his business and property within the meaning of 18 U.S.C. § 1964(c).

A. Compensable Economic Injuries

Defendants' racketeering conduct caused Plaintiff to suffer concrete and quantifiable economic losses, including:

1. Seizure of Funds.

Defendants caused the seizure and continued restraint of Plaintiff's bank accounts through enforcement of a foreign judgment procured by materially false representations. As a result of Defendants' enforcement actions, any funds received by Plaintiff above the applicable seizure threshold are immediately taken, and Plaintiff's limited monthly income is insufficient to allow account balances to rise above that threshold after basic subsistence expenses. These restraints prevent Plaintiff from borrowing, receiving, or retaining funds for medical care, legal expenses, or basic needs. They have also prevented Plaintiff from satisfying tax obligations, resulting in additional account seizures and administrative charges by tax authorities, and have forced Plaintiff to incur debt merely to pursue legal remedies, including the filing of this action.

2. **Encumbrance and Loss of Real Property.**

Defendants imposed a judicial lien on Plaintiff's ancestral home in France and the initiation of forced-sale proceedings, resulting in loss of title security, marketability, equity, and possessory rights.

3. **Legal Defense Costs.**

Substantial legal expenses were incurred defending U.S. litigation, including proceedings in which Defendants refused to provide mandatory advancement of legal fees required under DeepGulf's Bylaws, despite repeated written demands.

4. **Loss of Professional Income and Opportunity.**

Plaintiff's professional labor was diverted over multiple years to legal compliance and self-defense, preventing Plaintiff from pursuing engineering, scientific, consulting, and patent-related work that previously generated substantial income and intellectual property.

5. **Economic Coercion.**

The ongoing assertion of a fictitious debt, enforcement threats, and parallel domestic litigation collectively impaired Plaintiff's economic autonomy and property rights.

These injuries constitute direct economic loss recoverable under 18 U.S.C.

§ 1964(c).

B. Irreparable Harm

Defendants' conduct has caused, and continues to threaten, harm that cannot be adequately remedied by monetary damages alone.

Plaintiff's home and sole residence remains subject to forced judicial sale based on a judgment procured through racketeering conduct. Once sold, title cannot be restored and Plaintiff's residence, personal property, and accumulated possessions will be permanently lost. Plaintiff has no alternative housing, no family support, and no practical ability to secure substitute accommodation.

The property contains irreplaceable personal effects, including a substantial family library, abundant family memorabilia, furnishings, and other possessions accumulated over decades, which would be forfeited or destroyed in a forced sale context without compensation.

Plaintiff also faces the imminent loss of domestic animals residing on the property, which would be subject to administrative seizure upon eviction, creating a substantial risk of irreversible harm.

Once enforcement proceeds, these harms cannot be undone. No subsequent damages award could restore Plaintiff's home, personal property, shelter, or basic security.

Accordingly, Defendants' racketeering conduct presents an imminent threat of irreparable harm warranting injunctive and equitable relief under 18 U.S.C. § 1964(a), in addition to treble damages and costs under § 1964(c).

X. COUNTS

COUNT I
Violation of 18 U.S.C. § 1962(c)
(Conduct of an Enterprise Through a Pattern of Racketeering Activity)

Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

At all relevant times, Defendants David Rumsey, Rus Howard, and DeepGulf, Inc. were "persons" within the meaning of 18 U.S.C. § 1961(3).

As alleged in Section V, Defendants were associated with an enterprise within the meaning of 18 U.S.C. § 1961(4), which constituted an association-in-fact distinct from the individual Defendants and which engaged in, and whose activities affected, interstate and foreign commerce.

From at least 2013 through the present, each Defendant knowingly conducted or participated, directly or indirectly, in the conduct of the enterprise's affairs through a pattern of racketeering activity in violation of 18 U.S.C. § 1962(c).

The pattern of racketeering activity consisted of multiple related acts indictable under federal law, including wire fraud in violation of 18 U.S.C. § 1343 and mail fraud in violation of 18 U.S.C. § 1341, as alleged with particularity in Section V.D.

These racketeering acts were related, had the same or similar purposes, involved the same participants and victims, and constituted a continuous course of conduct posing a threat of continued criminal activity within the meaning of 18 U.S.C. § 1961(5).

As a direct and proximate result of Defendants' violations of 18 U.S.C. § 1962(c), Plaintiff suffered injury to his business and property, as alleged in Sections VIII and IX.

Pursuant to 18 U.S.C. § 1964(c), Plaintiff is entitled to recover treble damages, costs, reasonable attorneys' fees, and such other relief as the Court deems just and proper.

COUNT II

Violation of 18 U.S.C. § 1962(d)

(RICO Conspiracy)

Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

Defendants knowingly agreed and conspired to conduct and participate, directly or indirectly, in the conduct of the enterprise's affairs through a pattern of racketeering activity in violation of 18 U.S.C. § 1962(c).

Each Defendant knew the essential nature of the enterprise and agreed that at least one member of the conspiracy would commit acts constituting wire fraud and mail fraud in furtherance of the enterprise's objectives, as alleged herein.

Defendants knowingly agreed to the overall objective of the conspiracy and to the commission of racketeering acts by one or more co-conspirators, and each Defendant is responsible for the acts of the others committed in furtherance of the conspiracy.

As a direct and proximate result of Defendants' conspiracy to violate 18 U.S.C. § 1962(c), Plaintiff suffered injury to his business and property, as alleged in Sections VIII and IX, and is entitled to relief pursuant to 18 U.S.C.

§ 1964.

COUNT III
Fraud (Common Law)

Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

Plaintiff reasonably relied on Defendant Howard's representations that the proposed documentation was not operative, would not be enforced against Plaintiff, and did not reflect an actual loan obligation. As a result of that reliance, Plaintiff did not take steps to protect himself from later assertions of indebtedness.

Defendants made material misrepresentations of fact concerning the existence, nature, and source of the purported $50,000 transfer, including misrepresentations that the transfer constituted a personal loan from Defendant Rumsey to Plaintiff.

At the time the representations were made, Defendants knew that no funds had been advanced by Defendant Rumsey to Plaintiff and that the transfer originated from Defendant Howard through Whitesands, LLC.

Defendants made these misrepresentations with the intent to induce reliance by Plaintiff and to advance the same misrepresentations in judicial and enforcement proceedings.

Defendants' misrepresentations were material, intentional, and a proximate cause of Plaintiff's injuries, including the seizure and restraint of assets, impairment of property rights, and substantial economic harm.

COUNT IV

Fraudulent Misrepresentation to Third Parties

Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

Defendants knowingly made material misrepresentations of fact to third parties, including courts, enforcement authorities, and litigation counterparts, concerning the existence, source, and characterization of the June 2013 $50,000 transfer and Plaintiff's alleged indebtedness.

These misrepresentations included falsely identifying Defendant Rumsey as the lender, concealing that the transfer originated from Defendant Howard through Whitesands, LLC, and omitting DeepGulf's substantial accrued compensation obligations to Plaintiff.

Defendants made these misrepresentations with knowledge of their falsity and with the intent that third parties would rely upon them in judicial and enforcement proceedings.

Third parties did, in fact, rely on Defendants' misrepresentations, resulting in judicial orders, enforcement actions, and litigation positions that directly and foreseeably caused injury to Plaintiff.

As a direct and proximate result of Defendants' fraudulent misrepresentations to third parties, Plaintiff suffered financial loss, encumbrance of property, legal expenses, and impairment of earning capacity.

COUNT V
Civil Conspiracy

Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

Defendants knowingly agreed and conspired with one another to commit unlawful acts, including the fraud and fraudulent misrepresentations alleged in Counts III and IV.

In furtherance of the conspiracy, Defendants undertook acts designed to advance and give effect to the agreed-upon unlawful objective, including the coordinated assertion and enforcement of a debt narrative unsupported by any transfer of funds from Defendant Rumsey and inconsistent with Defendants' contemporaneous knowledge and records.

Defendants' concerted actions were taken pursuant to the conspiracy and were intended to, and did, cause injury to Plaintiff.

As a direct and proximate result of Defendants' civil conspiracy, Plaintiff suffered damages as alleged herein.

COUNT VI
Abuse of Process

Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

Defendants made use of judicial process, including enforcement proceedings and related legal mechanisms, for purposes other than those for which such process was designed.

After process was issued, Defendants used it to obtain collateral advantages not properly attainable through legitimate adjudication, including coercing Plaintiff into submission, exerting economic pressure unrelated to the merits of any claim, and converting disputed corporate obligations into personal leverage against Plaintiff.

Defendants' misuse of judicial process was willful and undertaken with an ulterior purpose, and caused Plaintiff to suffer substantial harm, including restraint and seizure of assets, encumbrance of property, and diversion of productive labor.

As a direct and proximate result of Defendants' abuse of process, Plaintiff suffered damages as alleged herein.

COUNT VII

Unjust Enrichment

Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

Defendants were enriched at Plaintiff's expense through the avoidance of repayment of accrued compensation obligations, the displacement of financial exposure otherwise borne by Defendants, and the imposition of encumbrances on Plaintiff's property.

Defendants' enrichment was obtained through conduct alleged herein, including the assertion and enforcement of a debt narrative unsupported by any transfer of funds from Defendant Rumsey and inconsistent with Defendants' contemporaneous knowledge and records.

Under these circumstances, it would be inequitable for Defendants to retain the benefits obtained at Plaintiff's expense without restitution.

Plaintiff is therefore entitled to disgorgement and restitution of all benefits unjustly obtained by Defendants.

COUNT VIII

Tortious Interference with Business and Economic Opportunities

Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

Plaintiff had existing and prospective business and professional relationships, including consulting, engineering, research, and technology-related engagements, from which Plaintiff reasonably expected economic benefit.

Defendants were aware of Plaintiff's professional activities and economic opportunities and intentionally interfered with those relationships and expectancies through wrongful means, including the assertion of a fabricated debt, the dissemination of false accusations of misconduct, and threats of legal retaliation directed at third parties who maintained contact or professional relationships with Plaintiff.

As a direct and proximate result of Defendants' intentional interference, Plaintiff's business relationships and economic opportunities were disrupted or terminated, causing Plaintiff to suffer measurable economic loss, including lost income and diminished earning capacity.

Defendants' interference was intentional, unjustified, and undertaken for the purpose of advancing Defendants' own interests at Plaintiff's expense.

COUNT IX

Declaratory Relief (State Law)

Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

An actual and justiciable controversy exists between Plaintiff and Defendants concerning their respective rights and obligations arising from the June 2013 $50,000 transfer and Defendants' subsequent assertions of indebtedness.

Plaintiff seeks a declaration under applicable state law that:

(a) Plaintiff did not receive a loan from Defendant David Rumsey;

(b) Plaintiff does not owe any debt or repayment obligation to Defendant Rumsey arising from the June 2013 transfer;

(c) Defendants have no lawful entitlement to assert, enforce, or collect any purported debt from Plaintiff based on that transfer; and

(d) any liens, claims, or enforcement efforts asserted by Defendants against Plaintiff's property on the basis of such purported debt are unsupported as between the parties.

Such declaratory relief will resolve the parties' legal relations and eliminate uncertainty concerning Defendants' asserted rights.

XI. SURVIVAL OF CLAIMS UPON PLAINTIFF'S DEATH (Rule 25(a) Notice)

Plaintiff alleges that the claims asserted in this action survive Plaintiff's death and may be prosecuted to judgment by a substituted party pursuant to Federal Rule of Civil Procedure 25(a).

The claims alleged herein, including claims under the Racketeer Influenced and Corrupt Organizations Act and related state-law claims, seek redress for injury to business and property and are not personal tort claims. Such claims survive the death of the injured party under applicable law.

Accordingly, the death of Plaintiff, if it were to occur, would not extinguish or abate the claims asserted herein, and substitution of an appropriate party may be effected in accordance with Federal Rule of Civil Procedure 25(a).

XII. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that the Court enter judgment in his favor and against Defendants David Rumsey, Rus Howard, and

DeepGulf, Inc., and award the following relief:

1. **RICO Damages.**

An award of compensatory damages in an amount to be determined at trial for injuries to Plaintiff's business and property, trebled pursuant to 18 U.S.C. § 1964(c).

2. **Restitution and Disgorgement.**

An order requiring Defendants to disgorge and restore all property, funds, and economic benefits unjustly obtained through the racketeering conduct alleged herein.

3. **Declaratory Relief.**

Declaratory relief consistent with Count IX, including declarations that Plaintiff does not owe any debt to Defendant Rumsey arising from the June 2013 transfer and that Defendants lack any lawful entitlement to assert or enforce such a debt against Plaintiff.

4. **Injunctive and Equitable Relief (18 U.S.C. § 1964(a)).**

In personam equitable relief against Defendants, including orders:

(a) enjoining Defendants from asserting, enforcing, or attempting to collect any purported debt from Plaintiff arising from the June 2013 transfer;

(b) enjoining Defendants from using judicial or enforcement mechanisms to advance or maintain financial claims against Plaintiff that are unsupported by any transfer of funds from Defendant Rumsey;

(c) requiring Defendant David Rumsey to take all steps within his control to suspend, stay, or withdraw ongoing enforcement efforts based on the purported debt, including instructing his French counsel to seek suspension of enforcement proceedings currently scheduled or anticipated on or about January 23, 2026;

(d) enjoining Defendants from engaging in further acts of intimidation, coercion, or interference directed at Plaintiff or third parties in connection with the alleged debt.

5. **Attorneys' Fees and Costs.**

An award of reasonable attorneys' fees and costs pursuant to 18 U.S.C. § 1964(c).

6. **Punitive or Exemplary Damages (State-Law Claims).**

To the extent available under applicable state law, punitive or exemplary damages sufficient to deter similar misconduct.

7. **Further Relief.**

Such other and further legal or equitable relief as the Court deems just and proper.

XIII. NOTICE REGARDING PARALLEL PROCEEDINGS AND TRANSMISSION

Plaintiff gives notice that a copy of this Complaint is being transmitted to court-appointed counsel in France, together with a French translation, solely for informational purposes and as supporting material in connection with ongoing enforcement-related proceedings involving Defendant David Rumsey.

Plaintiff gives notice that, after filing in this Court, a copy and a translation of this Complaint will be transmitted to counsel and to courts abroad in connection with parallel enforcement-related proceedings. This action does not request that this Court adjudicate, supervise, or direct any foreign proceeding, nor does it seek relief against any foreign tribunal. Any application for relief abroad is pursued solely through procedures available under applicable foreign law, and this Complaint may be submitted in those proceedings as factual and evidentiary material, without purporting to invoke the authority of this Court.

This Section is provided solely as a notice of parallel litigation activity and does not form part of the substantive claims for relief.

Respectfully submitted to the Court this 5th day of January 2026 by

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M. Moszkowski

CERTIFICATE OF WORD COUNT (FOR INFORMATIONAL PURPOSES)

I certify that this document contains 8,472 words, not including the case style, the signature block, the Exhibits and the certificates.

M. Moszkowski